It is of the essence of such opinions that they are advisory, i.e., unlike the Court's judgements, they have no binding effect. The requesting organ, agency or organization, remains free to give the opinion by any means open to it; or, if it so wishes, it may not give the opinion at all. Certain instruments or regulations can, however, provide beforehand that an advisory opinion by the Court shall have binding force.

Although the advisory opinions of the Court do not have a binding effect yet the advisory opinions of the Court nevertheless carry great legal weight and moral authority. They are often an instrument of preventive diplomacy and have peacekeeping virtues. Advisory opinions also, in their way, contribute to the elucidation and development of international law and thereby to the strengthening of peaceful relations between the states.

According to Article 38 of the Statute, the Court in deciding the disputes submitted to it applies international conventions establishing rules recognized by the contesting states, international custom as evidence of a general practice accepted by the law, the general principles of law recognized by the nations, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as a subsidiary means for determining the rule of law. The Court may decide *ex aequo et bono* (according to what is just and good, i.e., on the basis of practical fairness rather than strict law), but only if the parties concerned so agree.

All important decisions of the ICJ are taken by the majority of judges present. In case the votes are equally divided, the President has the right of his casting vote. Article 94 states that each member of the United Nations undertakes to comply with the decision of the ICJ in any case to which it is a party and, if any party to a case fails to perform the obligations incumbent upon it under a judgement rendered by the Court, the other party may have recourse to the Security Council, which may, if it deems necessary, make recommendations or decide upon measures to be taken to give effect to the judgement.

Article 96 upholds that the General Assembly or the Security Council may request the ICJ to give an advisory opinion on any legal